

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Monique West	Team: Squad #02	CCRB Case #: 201411942	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Wednesday, 03/19/2014 9:00 PM, Monday, 11/24/2014 12:00 AM	Location of Incident: § 87(2)(b); 120th Precinct stationhouse	18 Mo. SOL 9/19/2015	Precinct: 120		
Date/Time CV Reported Tue, 11/25/2014 3:06 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 11/25/2014 3:06 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. An officer			120 PCT
2. POF Kristin Lasky	11424	956037	120 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Michael Birch	01724	948674	120 PCT
2. POM Anthony Moon	05309	933052	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A . An officer	Off. Language: On March 19, 2014, at § 87(2)(b) in Staten Island, an officer made remarks to § 87(2)(b) based upon the perceived sexual orientation of § 87(2)(b)	A . Officer(s) Unidentified
B . An officer	Abuse: On March 19, 2014, at § 87(2)(b) in Staten Island, an officer refused to provide his name and shield number to § 87(2)(b)	B . Officer(s) Unidentified
C . An officer	Abuse: On November 24, 2014, at the 120th Precinct stationhouse, an officer refused to provide her name and shield number to § 87(2)(b)	C . Officer(s) Unidentified
D . POF Kristin Lasky	Abuse: On November 24, 2014, at the 120th Precinct stationhouse, PO Kristin Lasky refused to provide her name and shield number to § 87(2)(b)	D . Unsubstantiated
E . An officer	Abuse: On November 24, 2014, at the 120th Precinct stationhouse, an officer threatened to arrest § 87(2)(b)	E . Officer(s) Unidentified

Case Summary

On March 19, 2014, at approximately 9 p.m., PO Anthony Moon and PO Michael Birch of the 120th Precinct prepared a complaint report of harassment for § 87(2)(b) at § 87(2)(b), in Staten Island. § 87(2)(b) alleged that during his interaction with the officers, an officer referred to him as a “faggot” (**allegation A**) and refused to provide his name and shield number to him (**allegation B**) (complaint report encl. B2, CCRB statement encl. B5).

On November 24, 2014, at approximately 3:21 p.m., PO Kristin Lasky of the 120th Precinct prepared a report for § 87(2)(b)'s lost/stolen property at the 120th Precinct stationhouse in Staten Island. § 87(2)(b) alleged that during his interaction with her, PO Lasky and another officer refused to provide him with their names and shield numbers (**allegations C and D**). An officer told him that he “needed to leave right now or he was going to be arrested” (**allegation E**) (CCRB statement encl. B4). § 87(2)(b) was not arrested or summonsed during either incident.

Mediation, Civil and Criminal Histories

Mediation was offered but rejected by § 87(2)(b). The Notice of Claim was requested regarding the incident and will be added to the case file upon receipt. § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(g)]

Civilian and Officer CCRB Histories

- This is the second CCRB complaint filed by § 87(2)(b) § 87(2)(b) § 87(2)(b).
- This is the first CCRB complaint filed against PO Lasky during her one year tenure (encl. A1).

Finding and Recommendations

Explanation of Subject Officer Identification

For the March 19, 2014 incident, § 87(2)(b) described the two officers who responded to the incident both as white males. PO Moon, a black male officer, admitted to responding to the incident with his partner, PO Birch, a white male officer. No other officers were present. § 87(2)(g)

§ 87(2)(g). Neither PO Moon nor PO Birch admitted to committing the allegations or hearing their partner commit the allegations. § 87(2)(g)

For the November 24, 2014 incident, § 87(2)(b) described two white female officers who he interacted with at the precinct. He stated that the white female officer who prepared his report was in plainclothes and the other female officer was in uniform. PO Lasky admitted to preparing § 87(2)(b)'s report and stated that she was the only officer to interact with him; however, she was in uniform. According to § 87(2)(b) the officer in plainclothes threatened to arrest him and refused to provide her name and shield number. § 87(2)(g)

§ 87(2)(b) described the uniformed female officer as a white female in her late 20s-early 30s, approximately 6'1" tall with long brown hair and a thin build. PO Lasky is a 26-year-old, 5'10" tall white female who weighs 140 pounds and has brown hair and brown eyes. He described the uniformed officer as being "fresh out of the academy." PO Lasky has only been an officer with the NYPD for one year. § 87(2)(g)

Recommendations

Allegation A- Abuse of Authority: On March 19, 2014, at § 87(2)(b) in Staten Island, an officer made remarks to § 87(2)(b) based upon the perceived sexual orientation of § 87(2)(b)

Allegation B- Abuse of Authority: On March 19, 2014, at § 87(2)(b) in Staten Island, an officer refused to provide his name and shield number to § 87(2)(b)

Allegation C- Abuse of Authority: On November 24, 2014, at the 120th Precinct stationhouse, an officer refused to provide her name and shield number to § 87(2)(b)

Allegation E- Abuse of Authority: On November 24, 2014, at the 120th Precinct stationhouse, an officer threatened to arrest § 87(2)(b)

§ 87(2)(g). It is therefore recommended that allegations A, B, C and E be closed as **officer(s) unidentified**.

Allegation D- Abuse of Authority: On November 24, 2014, at the 120th Precinct stationhouse, PO Kristin Lasky refused to provide her name and shield number to § 87(2)(b)

§ 87(2)(b) alleged that when he asked PO Lasky for her name and shield number she said, "I ain't giving it to you" and turned around so that he could not read it (CCRB statement encl. B4).

PO Lasky stated that § 87(2)(b) did not ask for her name and shield number and she did not refuse to provide it to him (CCRB statement encl. C4).

§ 87(2)(g)
It is therefore recommended that allegation D be closed as **unsubstantiated**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date